No. 26-2469

IN THE UNITED STATES COURT OF APPEALS
FOR THE THIRD CIRCUIT

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Americans For Prosperity Foundation, et al.,
Appellants,

v.

Anthony Albence, et al.,
Appellees.

On Appeal from the United States District Court
for the District of Delaware
No. 1:26-cv-00445-JLH
The Honorable Jennifer L. Hall

Reply Brief for Appellants

REPLY BRIEF FOR APPELLANTS

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INTRODUCTION

Introduction

Delaware's brief demonstrates that it cannot meet its "burden . . . of proving that [its] law is constitutional." *Amalgamated Transit Union Local 85 v. Port Authority of Allegheny County*, 39 F.4th 95, 103 (3d Cir. 2022) (quotation omitted). While acknowledging that this case is governed by the exacting scrutiny standard, the State declines to "demonstrate its need for" astoundingly invasive donor information "in light of any less intrusive alternatives." *AFPF v. Bonta*, 594 U.S. 595, 613 (2021).

Instead, it dodges the question, arguing that existing Circuit precedent has already applied narrow tailoring to its law—even though this is plainly wrong and the Tenth Circuit has expressly said so. *See infra* § I.B. Or, it suggests, *AFPF* did not alter the law at all—in the teeth of direct statements to the contrary by both the First and Tenth Circuits. *Id.* It points to multiple circuit decisions as justification for its law, but all of them involve statutes that are better tailored and serve as models for Delaware to reform its unconstitutional enactment, not authority to uphold its current regime. Finally, it bypasses the Supreme Court's most recent and on-point authority, *AFPF*, and instead argues that it is protected by earlier campaign finance cases blessing a different statute and administered—with the approval of the D.C. Circuit—under an earmarking regime is not present here. *See infra* § I.C.

But then, despite strenuously arguing that voters cannot evaluate public messages without knowing a group's donors, Delaware reverses course. Appellants

But then, despite strenuously arguing that voters cannot evaluate public messages without knowing a group's donors, Delaware reverses course. Appellants this argument—that speaking through a PAC is an acceptable alternative to speaking directly—was raised and rejected in *Citizens United*. At the end of the day, Delaware believes that its unbounded and undefined informational interest gives it the right to "near plenary donor disclosure." The State is mistaken and a preliminary injunction is warranted.

ARGUMENT

I. The Act cannot survive exacting scrutiny.

A. The Act is not narrowly tailored to an important government interest.

Appellants' opening brief demonstrated that the Act triggers exacting scrutiny and fails the standard announced in *AFPF v. Bonta*, 594 U.S. 595 (2021). The State acknowledges that exacting scrutiny applies, but does precious little to defend the Act under that demanding standard. The Act is not remotely tailored because its demand for donors' public exposure sweeps in startling swaths of information with no connection to Delaware election-related speech. Nowhere does the State identify why basic tailoring devices—whether an earmarking arrangement or opt-out system or indeed *any* attempt to cabin compelled disclosure to those

supposed purpose. That omission confirms that it cannot meet the governing standard.

actually supporting regulated speech in Delaware—would not serve its supposed purpose. That omission confirms that it cannot meet the governing standard.

1. An unbounded information interest is insufficiently weighty or genuine to justify any compelled disclosure.

1. An unbounded information interest is insufficiently weighty or genuine to justify any compelled disclosure.

The State's own briefing confirms the weight of Appellants' argument that the State has advanced no "sufficiently important interest" to justify any disclosure requirement. *AFPF*, 594 U.S. at 607. The State claims Delawareans must "know[] who is behind the electioneering messages they hear." But its own brief abandons that interest by admitting the State gladly authorizes "a Delaware-specific association or PAC to sponsor" electioneering communications and bypass the Act's donor disclosure requirement.

The State's own briefing confirms the weight of Appellants' argument that the State has advanced no "sufficiently important interest" to justify any disclosure requirement. *AFPF*, 594 U.S. at 607; *see* Opening Br. 21-24. The State claims Delawareans must "know[] who is behind the electioneering messages they hear." But its own brief abandons that interest by admitting the State gladly authorizes "a Delaware-specific association or PAC to sponsor" electioneering communications and bypass the Act's donor disclosure requirement. Br. 38. The State claims this framework contains no meaningful "formal organizational requirements" or "contribution limits" of the type imposed by federal law and "is simply an alternative entity formed to facilitate campaign finance reporting." Br. 38-39. But it is unserious for the State to contend that entities like Appellants must disclose all their donors nationwide going back years to allow "voters to evaluate and measure the statements made" in advertising the sponsor, Br. 7 (citation omitted), and then propose that Appellants can avoid doing exactly that "via a simple online form," Br. 38. Loopholes like this "raise[] serious doubts about whether the [supposedly] modeled" government is in fact pursuing the interest it invokes." *Brown v. Ent. Merchants Ass'n*, 564 U.S. 786, 802 (2011); see *The Fla. Star v. B.J.F.*, 491 U.S. 524, 540 (1989) (similar "serious doubts"). The State's invocation of "the federal law upon which [the Act] was one reporting regime based on interests of the federal government necessarily

approved all reporting regimes. In any event, the State admits federal law is not administered to require disclosure of all donors of entities that spend on electioneering communications. A state's supposed "purpose" can be "belied" by other provisions of its own law that "are both underinclusive and overinclusive." *First Nat. Bank of Bos. v. Bellotti*, 435 U.S. 765, 792-93 (1978). The State's contention that its regime is so flimsy as to be meaningless betrays its asserted interest as equally meaningless.

Ass'n, 564 U.S. 786, 802 (2011); *see The Fla. Star v. B.J.F.*, 491 U.S. 524, 540 (1989) (similar "serious doubts").

The State's invocation of the federal law upon which [the Act] was [supposedly] modeled," Br. 29, wrongly assumes that Supreme Court precedents approving one reporting regime based on interests of the federal government necessarily approved all reporting regimes. As shown below (§ I.C), the precedents the State cites do not support its position here. In any event, the State admits federal law is not administered to require disclosure of all donors of entities that spend on electioneering communications. *See* Br. 35-36. And even if it were administered as the State thinks it should be, *see* Br. 6 & n.2, federal law does not categorically nix disclosure obligations for anyone who fills out "a simple…form.". Br. 38. A state's supposed "purpose" can be "belied" by other provisions of its own law that "are both underinclusive and overinclusive." *First Nat. Bank of Bos. v. Bellotti*, 435 U.S. 765, 792-93 (1978). The State's contention that its regime is so flimsy as to be meaningless betrays its asserted interest as equally meaningless.

The State also has little response to Appellants' point that the startling sweep of the Act calls for the Court to address governmental interests "[i]n reality." *AFPF*, 594 U.S. at 614; Opening Br. 23. The State argues that *AFPF* did not "question the informational interest in electoral disclosure," Br. 32, but that is not what Appellants argued. Instead, Appellants demonstrated that Delaware's informational interest in

CONCLUSION

Conclusion

The Court should reverse the district court's denial of the preliminary injunction and direct it to issue the requested injunction.

Respectfully submitted,

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CERTIFICATE OF COMPLIANCE

Certificate of Compliance

The undersigned counsel for Appellants hereby certifies pursuant to L.A.R. 46.1(e) that he is a member in good standing of the bar of this Court.

The undersigned counsel certifies pursuant to L.A.R. 46.1(e) that counsel is a member in good standing of the bar of this Court.

The undersigned counsel for Appellants hereby certifies that this brief complies with the requirements of Fed. R. App. P. 32(a)(7)(B) and 32(a)(5)–(6) in that it is prepared in 14-point, proportionately spaced Times New Roman font type utilizing Microsoft Word and contains 6,479 words, including headings, footnotes, and quotations. The text of the electronic document is identical to the paper copies.

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CERTIFICATE OF SERVICE

Certificate of Service

I hereby certify that the foregoing brief was electronically filed on this date

The undersigned counsel for Appellants hereby certifies that the foregoing brief was electronically filed with the Clerk of the Court for the United States Court of Appeals for the Third Circuit by using the appellate CM/ECF system. Participants in the case who are registered CM/ECF users will be served by the appellate CM/ECF system.

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